

Barsatu Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 August 2024 · 2024:AHC:132188-DB · Writ-C No. 26761 of 2024 · **Writ disposed; liberty to avail Clause 6.5 remedy.**

HEADNOTE

A writ challenging a recovery citation for electricity dues was disposed of with liberty to the consumer to pursue the efficacious alternative remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court did not examine the merits of the citation.

FACTUAL SUMMARY

Barsatu Yadav petitioned the Allahabad High Court against a recovery citation dated 31 July 2024 issued by respondent no. 3 for electricity dues. Counsel for the Electricity Department submitted that the petitioner had an efficacious remedy under Clause 6.5 of the Electricity Supply Code, 2005. The Division Bench accepted that submission and did not go into the correctness of the citation or the dues claimed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternate-remedy-clause-6.5

HOLDING

A writ against a recovery citation for electricity dues is not entertained on merits where Clause 6.5 of the Electricity Supply Code, 2005, furnishes an efficacious alternative; the petition is disposed of with liberty to avail that remedy. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RECOVERY CITATION DATED 31.07.2024

Merits of the electricity dues and the citation were not examined. ¶ 1-4